

Chandrashekhar S/O Gangadhar Wankhede vs Vandana Chandrashekhar Wankhede on 13 September, 2022

Author: Avinash G. Gharote

Bench: Avinash G. Gharote

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

SECOND APPEAL NO.205 OF 2022

Chandrashekhar s/o Gangadhar Wankhede
Vs.
Vandana Chandrashekhar Wankhede

Office Notes, Office Memoranda of Coram,
appearances, Court's orders of directions
and Registrar's orders

Mr. P. D. Meghe, Advocate for appellant.

CORAM :

DATE :

1.

The

respondent took place on 21.7.2007. It has come on record in evidence, that after the marriage, in 2009 the respondent had resided with the appellant only for 2 to 3 months and since 2009 onwards, they have been residing separately, since till date. It is further contended, that till date there is no resumption of cohabitation, there is an irretrievable break down of marriage, considering which, the following substantial question of law arises:

(i) Whether due to voluntary leaving the matrimonial residence and not resuming cohabitation, even during the pendency of the litigation could it be said that the requirements of Section 13(1)(i-b) of the Hindu Marriage Act, which speaks about the desertion, were satisfied and the appellant was entitled to a decree of divorce? (2)
925.sa.205.2022

2. Issue notice to the respondent for final disposal of the matter at the stage of admission itself, returnable on 3.10.2022.

3. The learned counsel for the appellant shall place on record the paper book of the first Appellate Court along with all exhibited documents, before the returnable date.

JUDGE Sarkate